

## Amended Excerpts

## 1. Line 259 through 267:

- 259 (ii) used within the course and scope of the duties of the government agency.
- 260 (b) A resident or nonresident owner or operator of a nonmotorized vessel or inflatable
- 261 motorboat is exempt from this section before launching or operating a nonmotorized
- 262 vessel or inflatable motorboat on the waters of this state  $\hat{H} \rightarrow [ \{ \text{-only if the nonmotorized-} \} ] \leftarrow \hat{H}$
- 263  $\hat{H} \rightarrow [ \{ \text{vessel or inflatable motorboat is being launched or operated in a geographic} \}$
- 263a  $\{ \text{region,} \} ] \leftarrow \hat{H}$
- 264  $\hat{H} \rightarrow [ \{ \text{water body, facility, or water supply system that is not infested water} \} ] \leftarrow \hat{H}$  .
- 265 (c) A person renting or leasing a vessel from a boat livery:
- 266 (i) is not required to pay the aquatic invasive species fee described in Subsection (1)
- 267 or (2); and

## 2. Line 315 through 319:

- 315 exempt from the requirement under Subsection 23A-10-304(3); and
- 316 (b) provide the person renting or leasing the conveyance proof of completion of the
- 317 aquatic invasive education course.
- 317a  $\hat{H} \rightarrow$  (3) (a) An owner of a boat livery is exempt from Subsection (2) if the owner
- 317b of the boat livery or person renting or leasing a conveyance does not transport on a
- 317c highway the conveyance after being rented or leased and before the conveyance is
- 317d used by the person renting or leasing the conveyance.
- 317e (b) An owner of a boat livery is exempt from Subsection (2) if:
- 317f (i) the conveyance being rented or leased is transported by the owner of the boat
- 317g livery to a waterbody;
- 317h (ii) the person renting or leasing the conveyance does not operate the conveyance;
- 317i (iii) the owner of the boat livery rents or leases the conveyance under the
- 317j condition that the livery owner, the livery owner's agent, an independent
- 317k contractor, or employee of the livery owner operates the conveyance; and
- 317l (iv) the person operating the conveyance under this Subsection (3)(b) has taken
- 317m the aquatic invasive species education course as required in Subsection
- 317n 23A-10-303(4).
- 318  $[ \{ \text{3} \} ]$  (4)  $\leftarrow \hat{H}$  A person who violates this section is guilty of a class B misdemeanor in
- 318a accordance

319     with Section 23A-5-301.